

		But the issue remains whether Defendants have now appeared and must respond to the Complaint. Parties are ordered to come prepared to discuss this issue with the Court.
7.	2024-1394067 Sanchez vs. Jaguar Land Rover North America, LLC	The motion by Plaintiff Oscar Sanchez (“Plaintiff”) for an order awarding attorneys’ fees and costs pursuant to Civil Code section 1794, subdivision (d) is granted. On February 18, 2026, the hearing on this motion was continued to allow Plaintiff to file Plaintiff’s supporting declaration because it appeared Plaintiff inadvertently filed Plaintiff’s memorandum of costs twice instead of the supporting declaration. Plaintiff filed the supporting declaration that was served on July 31, 2025, and provided notice of the continued hearing to Defendants Jaguar Land Rover North America, LLC and Anaheim Hills Jaguar Land Rover, Inc., dba Jaguar Land Rover Anaheim Hills (collectively, “Defendants”). Defendants’ unopposed request for the Court to take judicial notice of the register of actions and the notice of settlement are denied because Defendants did not make the request “in a separate document.” (Cal. Rules of Ct., Rule 3.1113(l).) In addition, it is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9:53.1a.) The Court exercises its discretion to consider Plaintiff’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Civil Code section 1794, subdivision (d) provides as follows: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” There is no dispute that Plaintiff is the prevailing party and entitled to recover Plaintiff’s costs, including fees, pursuant to section 1794, subdivision (d). The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th

1084, 1095.) The Court may make its determination of the value of the services rendered without the necessity of expert testimony. (*Id.* at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (*Id.*)

The party seeking an award of fees is not necessarily entitled to compensation for the value of attorney services according to his own notion or to the full extent claimed by him. (*Levy v. Toyota Motors Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815-816.) The moving party instead has the burden of showing that the fees sought were allowable, reasonably necessary to the conduct of the litigation, and reasonable in amount. (*Id.*, at 816.)

Courts apply a lodestar method to calculate reasonable attorneys' fees. (*Meister v. U.C. Regents* (1998) 67 Cal.App.4th 437, 448-449.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (*Serrano v. Priest* (1977) 20 Cal.3d 25.) A reasonable fee is determined in the trial court's discretion. (*PLCM Group*, 22 Cal.4th at 1095.) To determine reasonable attorneys' fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.)

McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 703 provides:

"The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.... 'It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not

reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.’ ... [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818, 50 Cal.Rptr.3d 731.)

The fees incurred in preparing a motion for fees are properly includable in the award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133 [“an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee”].)
(*Id.*)

A reasonable hourly rate reflects the skill and experience of the lawyer, including any relevant areas of particular expertise, and the nature of the work performed. (*Hensley v. Eckerhart* (1983) 461 U.S. 424, 433-434.)

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. (*PLCM Group*, 22 Cal.4th at 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight contingent fee basis, or are in house counsel. (*Id.* [emphasis added].)

“Affidavits of the Plaintiff’s attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the Plaintiff’s attorneys are satisfactory evidence of the prevailing market rate.” (*United Steelworkers of America v. Phelps Dodge Corp.* (9th Cir. 1990) 896 F.2d 403, 407.)

Plaintiff retained counsel in December 2023, and the case settled around July 2025. In less than two years’ time, Plaintiff’s case utilized four lawyers, two law clerks, and a paralegal. Based on the evidence submitted, the Court finds the following hourly rates are reasonable:

- 1) Attorney Saeedian - \$550 (Saeedian Decl., ¶¶ 2-3.)
- 2) Attorney Urner - \$350 (Saeedian Decl., ¶¶ 4.)
- 3) Attorney Perude - \$550 (Saeedian Decl., ¶ 6.)

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| | <p>4) Attorney Acosta - \$375 for services performed after July 2024 and \$300 for services performed before July 2024 (Saeedian Decl., ¶ 5.)</p> <p>5) Law Clerk Kowalczyk - \$150 (Saeedian Decl., ¶ 7.)</p> <p>6) Law Clerk Ghazarian - \$150 (Saeedian Decl., ¶ 8.)</p> <p>7) Paralegal Zazueta - \$125 (Saeedian Decl., ¶ 8.)</p> <p>In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>)</p> <p>Additionally, moving party’s counsel’s verified time records should be “entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.)</p> <p>However, the Court “may not rubber stamp a request for attorney fees, but must determine the number of hours <i>reasonably</i> expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271.)</p> <p>Plaintiff submitted Plaintiff’s attorneys’ time entries to support Plaintiff’s request, which Plaintiff’s counsel contends he reviewed for accuracy and to remove redundancy billing and non-essential clerical items. (Saeedian Decl., ¶¶ 14 and 25, Exhibit A.)</p> <p>Defendants contend the total amount billed for such a straightforward case that had little litigation activity is unreasonable. Defendants contend Defendants incurred less than \$15,000 in fees and request the Court award no more than \$15,000 to Plaintiff. However, Defendants only directs the Court’s attention to two tasks – the drafting of the complaint and the drafting of this motion. In addition, Plaintiff filed discovery motions, which Defendants did not oppose.</p> <p>After reviewing the time entries at issue, the Court contrary to Defendants’ contention, Plaintiff only billed 0.4 hours to draft the complaint. (Saeedian Decl., Exhibit A, page 1 [at page 13 of PDF].) This time is more than reasonable. The time billed for preparing this motion, approximately 3.6 hours, is reasonable. The estimated time for reviewing the opposition and preparing the reply should be revised based on the reply declaration. The time should be reduced by 0.8 hours based on the newly submitted evidence. In addition, Plaintiff does not need 1 hour to prepare for the hearing. Assuming</p> |
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		Plaintiff will appear by Court Call, 1 hour to prepare and attend the hearing is more than sufficient. After reviewing the time entries at issue, the recommendation is to reduce the following: 1) Client intake fees – these services (drafting the attorney client agreement, communications regarding the agreement, etc.) are a part of doing business and should not be passed on to Defendants. 2) One hour to prepare for the hearing on this motion Based on the Court’s review of the papers submitted in support and in opposition to this motion, and the procedural history of this case, the Court finds that Plaintiff reasonably incurred \$36,572.50 in attorneys’ fees. Defendants contend Plaintiff’s requested costs for “Other” costs should be reduced. However, Defendants did not file a motion to tax or strike costs. “Delay (or failure) to challenge a costs bill waives any objection to the costs claimed thereon.” (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 290.) In addition, Defendants’ request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendants’ request is denied. Plaintiff’s motion for fees is granted. Plaintiff is awarded \$36,572.50 in attorneys’ fees and \$3,010.89 in costs. Plaintiff shall give notice.
8.	2025-1494177 The Springs Condominium vs. Beavis	Plaintiff The Springs Condominium’s Motion for Publication of Summons and Complaint is denied. Plaintiff moves, under CCP section 415.50, for an order allowing it to serve process, by publication, against a defendant that has been named in the Complaint as “Andrew” and “Trespassing Defendant.” The Court finds this designation of the defendant is not sufficient to permit service by publication. Before allowing a plaintiff to resort to service by publication, the courts necessarily require the plaintiff to show exhaustive attempts to locate the defendant, for it is generally recognized that service by publication rarely results in actual notice.” (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, fn. 5 [noting that “number of honest attempts to learn defendant’s whereabouts or his address” should be made, such as by “inquiry of relatives” and “investigation of appropriate city and telephone directories,” and other “likely sources of information”].) “If a defendant's address is ascertainable, a